MEMORANDUM TO THE FILE

Subj: FAR SUBPART 8.4 LIMITED SOURCES JUSTIFICATION

I. BACKGROUND:

A. FAR 8.405-6 states that orders placed, or BPAs established under Federal Supply Schedules are exempt from the requirements in FAR Part 6. However, an ordering activity must justify its action when restricting consideration. This memorandum documents the justification for limiting sources, in accordance with FAR 8.405-6(c).

B. This acquisition is conducted under the authority of the Multiple-Award Schedule Program (see FAR 8.401).

II. IDENTIFICATION OF THE AGENCY AND CONTRACTING ACTIVITY:

This acquisition is being conducted by the Department of the Navy, under the Headquarters Marine Corps, Installation and Logistics (HQMC, I&L) Head of the Contracting Activity (HCA). The executing contracting office is Marine Corps Installations National Capital Region - Regional Contracting Office (MCINCR-RCO), 2010 Henderson Road, MCB Quantico, VA 22134-5000.

III. NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

The Marine Corps Technology Services Organization (TSO) has a requirement continue service and support for existing F5 BIG-IP Application Delivery Controller (ADC) appliances.

The intent of this action is to issue a limited-source procurement in accordance with FAR 8.405-6(c) under the DoD Enterprise Software Initiative (ESI) Blanket Purchase Agreement (BPA).

This procurement is restricted to F5 contract holders, and their authorized dealers as designated under their respective Blanket Purchase Agreements (BPAs).

IV. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING THE ESTIMATED VALUE):

This requirement is for the renewal of F5 BIG-IP Application Delivery Controller (ADC) appliances licenses and support services.

Source or Brand Name: F5 Inc.

Expected Deliver/Coverage Base: 24 June 2025- 23 June 2026

BASE YEAR				
CLIN#	**Brand Name/Manufacturer**	**Item Description**	**Manufacturer Part #**	**Qty**
0001	Broadcom, Inc.	BIG-IP Service Premium Level 1-3 Support Period: 24 June 2025 – 23 June 2026	F5-SVC-BIG-PRE-L1-3	2
0002	Broadcom, Inc.	Service: RMA Removable HD/MEM (per unit) Support Period: 24 June 2025 – 23 June 2026	F5-SVC-RMA-OPT	2

0003	Broadcom, Inc.	BIG-IP Subscription: Advanced WAF Threat Campaigns License Support Period: 24 June 2025 – 23 June 2026	F5-SBS-BIG-TC-3-1YR	2
0004	Broadcom, Inc.	BIG-IP Service: Premium Virtual Edition Level 1-3 Support Period: 24 June 2025 – 23 June 2026	F5-SVC-BIG-VE+PREL13	4

V. THE DETERMINATION TO LIMIT SOURCES IS BASED ON THE FOLLOWING AUTHORITY AND SUPPORTING RATIONALE *(select all that apply):*

A. ___ ***AN URGENT AND COMPELLING NEED EXISTS, AND FOLLOWING THE PROCEDURES IN FAR 8.405-2 OR 8.405-3 WOULD RESULT IN UNACCEPTABLE DELAYS (FAR 8.405-6(a)(1)(i)(A)):***

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:

2. Required delivery date/period of performance:

3. Explanation of why delivery/commencement of services by the date mentioned above is required:

4. Market research:

B. __***ONLY ONE SOURCE IS CAPABLE OF PROVIDING THE SUPPLIES OR SERVICES REQUIRED AT THE LEVEL OF QUALITY REQUIRED BECAUSE THE SUPPLIES OR SERVICES ARE UNIQUE OR HIGHLY SPECIALIZED (FAR 8.405-6(a)(1)(i)(B))*** *(select all that apply):*

1. ___ RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. ___ EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

___ OTHER REASONS.

C. ___ ***IN THE INTEREST OF ECONOMY AND EFFICIENCY, THE NEW WORK IS A LOGICAL FOLLOW-ON TO AN ORIGINAL FEDERAL SUPPLY SCHEDULE ORDER (FAR 8.405-6(a)(1)(i)(C)):***

The original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order or BPA was **not** issued under sole-source or limited-sources procedures.

D. X *ITEMS PECULIAR TO ONE MANUFACTURER (FAR 8.405-6(b)):*

An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer.

This is the only authorized source provider through Department of Defense (DoD)Enterprise Software Initiative (ESI) Blanket Purchase Agreement (BPAs). This document meets the statutory requirement for Multiple Award Schedule (MAS) at 40 U.S.C. 501 to execute the justification and approval addressed at FAR 8.405-6(a)(1)(i)(C) and DFARS 208.7402 to fulfill requirements for commercial software and related services in accordance with DoD Enterprise Software Initiative (ESI).

In accordance with DFARS 208.7402, departments and agencies are required to fulfill commercial software and related service needs, such as software maintenance, through the DoD Enterprise Software Initiative (ESI). As such, DoD ESI is the mandatory source for software and software maintenance agreements, and this requirement will be restricted to authorized Blanket Purchase Agreement (BPA) holders.

Headquarters Marine Corps Technology Services Organization (TSO) has a requirement to continue service and support for existing F5 BIG-IP Application Delivery Controller (ADC) appliances. The BIG-IP Premium Service agreement provides 24/7 remote tech support, software/patch updates and hardware replacement coverage. This support service will allow TSO to continue a modern, utility-based operating environment supported by standard operating procedures resulting in cost savings, operational efficiencies and defined service levels. The RMA Removable HD option allows the customer to retain the physical hard disk (upon authorization) in the event of a hardware failure and allows TSO to remain in constant possession of all data stored on affected devices. The F5 WAF Threat Campaign helps to identify an attack indicator for mitigation to be performed.

TSO’s F5 BIG IP physical and virtual appliances are currently in use within all Marine Corps Technology Services Organization’s production and development environments. The existing F5 BIG-IP hardware platforms are designed specifically for application delivery performance and scalability. Devices are configured for server load balancing, global data center load balancing, routing, switching, authentication, proxy services, web application firewall, access management, web performance optimization and WAN optimization. The F5 BIG-IP service and support will allow for the continuation of load balancing and high system availability that meets Marine Corps mission standards. This equipment is proprietary to F5 Networks, Inc. and only the manufacturer's authorized resellers can provide the licenses and maintenance support.

The TSO has invested a significant amount of time and effort in the F5 load balancing technologies not only due to the efficiencies the products offer, but also due to F5 being the only company that offers CAC base certificate application authentication. This provides both current and retired Marines with DISA approved security that is required to access personnel files which are purely confidential in nature.

The Request for Quotation (RFQ) is expected to be solicited and awarded to BPA contract holders and their authorized dealers listed under their respective Blanket Purchase Agreements (BPAs):

- Carahsoft Technology Corp (BPA N6600123A0049)
- GuidePoint Security, LLC (BPA N6600123A0054)

This procurement effort falls under NAICS code 513210 – Software Publishers, which encompasses entities primarily engaged in software development and distribution.

VI. DETERMINATION THAT THE ORDER OR BPA REPRESENTS THE BEST VALUE:

The Contracting Officer has determined that the order or BPA covered by this justification represents the best value to the Government. Fair and reasonable pricing will be assessed in accordance with DoD Class Deviation 2014-O0011, utilizing the proposal analysis techniques outlined in FAR 15.404-1.

When considering all of the features and characteristics of F5 Networks, this particular brand name is essential to the Government's requirements. The cost and level of effort would be too great to transition to another system/tool set that may or may not meet the government's business and technical needs as an organization. Any deviation from pursing another software application that does not meet the unique specifications, would result in putting the systems at great risk and result in a loss of a continuity of operations. Additionally, the security risk of a possible breach of the confidentiality of any records would outweigh any perceived advantage of switching to another manufacturer along with the possibility of the applications being denied by not meeting DISA approved security requirements.

VII. DESCRIPTION OF THE MARKET RESEARCH CONDUCTED AMONG SCHEDULE HOLDERS:

A discussion of the market research conducted among schedule holders and the results, or reason market research was not conducted, is included in Section V, above.

Market research conducted on the DoD ESI website for the F5 BIG-IP Application Delivery Controller (ADC) by F5, Inc. identified two Blanket Purchase Agreement (BPA) contract holders: Carahsoft Technology Corp (BPA N6600123A0049) and GuidePoint Security, LLC (BPA N6600123A0054).

Under the DoD Enterprise Software Initiative (ESI) Blanket Purchase Agreements (BPAs), BPA holders must be prioritized in the procurement process. As a result, it is anticipated that the Request for Quotation (RFQ) will be solicited and awarded to either BPA contract holders or their authorized dealers listed under their respective Blanket Purchase Agreements (BPAs).

This procurement effort falls under NAICS code 513210 – Software Publishers, which classifies businesses primarily engaged in software development and distribution. This designation ensures alignment with industry standards for software-related acquisitions and maintains consistency within the DoD Enterprise Software Initiative (ESI) framework.

Additionally, F5 Networks Premium Service, RMA Removable HD, and Advanced WAF Threat Campaigns Licensing have been approved for the Marine Corps within the Department of Defense (DoD) Information Technology Portfolio Repository (DITPR) and the Department of Navy (DON) Application and Database Management System (DADMS). These systems, categorized under DoD and DON Information Technology Systems, are officially recognized [redacted]

In compliance with FAR Part 10, the market research included a review of existing Government-Wide Acquisition Contracts (GWACs) and DoD Multiple-Award Contract Vehicles. The findings confirmed that F5 BIG-IP is available through the DoD Enterprise Software Initiative (ESI).

This approval ensures compliance with DoD cybersecurity standards and facilitates secure access to critical network security and application protection solutions.

VIII. ACTIONS TAKEN TO REMOVE OR OVERCOME BARRIERS:

At this time, F5 BIG IP physical and virtual appliances are the only effective and efficient hardware/software source to meet TSO's requirements. However, TSO will continue monitoring the market and conduct continuous market research in an effort to identify any emerging technologies that may satisfy future requirements. Should such technologies become available, TSO will seek competition to the maximum extent practicable and the contracting office will assess competition for future requirements.

The Government will continue to monitor the market and conduct market research to identify emerging solutions that may satisfy future similar needs. If such solutions become available during the lifecycle of the current requirement, the Government will evaluate whether transitioning to these alternatives or maintaining F5 BIG-IP is in its best interest.

For future similar requirements, the Government will aim to maximize competition to ensure the best value and alignment with procurement objectives.

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